

		However, the parties are reminded that when leave to amend is granted upon the sustaining of a demurrer or motion to strike, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) Defendant shall give notice of this ruling.
2	Selski vs. Providence Mission Hospital Mission Viejo 30-2025-01513378	<u>Motion to Compel Arbitration</u> Defendant THC – Orange County, LLC's (erroneously sued as Kindred Hospital Brea) Motion to Compel Arbitration and Stay the Proceedings is taken OFF CALENDAR pursuant to the Stipulation to Arbitration Following Mediation and the Order thereon issued May 22, 2026 (ROA #64).
3	Hatter vs. Knott's Berry Farm, LLC 30-2025-01513936	<u>Demurrer</u> Defendants Knott's Berry Farm, LLC's and Cedar Fair, L.P. dba Cedar Fair Entertainment Company's (erroneously sued as Cedar Fair Entertainment Company) Demurrer to Plaintiff's Complaint is SUSTAINED with 15 days leave to amend as to the 2nd and 3rd Causes of Action. If Plaintiff Markeita Lemetrea Hatter does not amend the Complaint for Damages within the period of time stated above, Defendants Knott's Berry Farm, LLC and Cedar Fair, L.P. dba Cedar Fair Entertainment Company shall file an answer or other pleading in response to the remaining cause of action of the Complaint for Damages within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court, rule 3.1320(j).) <u>Pending Motion</u> Defendants Knott's Berry Farm, LLC and Cedar Fair, L.P. dba Cedar Fair Entertainment Company (erroneously sued as Cedar Fair Entertainment Company) demur to the 2nd

		and 3rd Causes of Action of the Complaint for Damages (Complaint) filed by Plaintiff Markeita Lemetrea Hatter. <u>Standard on Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) However, "where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents." (<i>Jimenez vs. Mrs. Gooch's Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.) Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>2nd Cause of Action (Strict Product Liability) and 3rd Cause of Action (Negligent Products Liability)</u> "The elements of a strict products liability cause of action are a defect in the manufacture or design of the product or a failure to warn, causation, and injury." (<i>County of Santa</i>
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		<i>Clara v. Atlantic Richfield Co.</i> (2006) 137 Cal.App.4th 292, 318.) More specifically, the plaintiff must allege and prove the following: "(1) the product is placed on the market; (2) there is knowledge that it will be used without inspection for defect; (3) the product proves to be defective; and (4) the defect causes injury to a human." (<i>McCreery v. Eli Lilly & Co.</i> (1978) 87 Cal.App.3d 77, 83, disapproved on other grounds, <i>Sindell v. Abbott Laboratories</i> (1980) 26 Cal.3d 588, 614–615.) The elements of negligent products liability claim are: (1) the plaintiff was injured by a defect in the product; (2) the product was defective when it left the hands of the retailer or manufacturer; and (3) that the defect in the product was due to negligence of the defendant. (<i>Scott v. Metabolife Internat., Inc.</i> (2004) 115 Cal.App.4th 404, 415.) Defendants argue that the 2nd and 3rd Causes of Action fail because Defendants did not design, manufacture, or build the product at issue in this case – the Jaguar ride. However, the Complaint alleges that Defendants are liable for Plaintiff's injuries in "negligently and carelessly constructing, building, [] designing, [] buying, selling, [] manufacturing, maintaining [] the SUBJECT RIDE and/or each and every component part thereof . . ." (Compl., ¶ 9.) The Complaint also pleads that Defendants "manufactured, fabricated, designed, assembled, tested, distributed, sold, inspected, marketed, warranted, leased, rented, supplied, modified, provided, serviced, repaired, maintained and/or advertised the SUBJECT RIDE, which contained design and/or manufacturing defects . . ." (<i>Id.</i>, ¶ 15.) The Complaint further asserts that Defendants "negligently designed, engineered, developed, tested, approved, manufactured, fabricated, assembled, equipped, inspected, repaired, labeled, advertised, promoted, marketed, supplied, distributed, wholesaled, and sold the SUBJECT RIDE and its component parts . . ." (<i>Id.</i>, ¶ 21.) For purposes of this demurrer, the court must assume the truth of these allegations. Defendants also argue that Plaintiff fails to allege facts that show that Defendants are in the business of providing a product rather than a service.
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		However, for most causes of action, including the 2nd and 3rd Causes of Action here, the plaintiff need plead only ultimate facts, not evidentiary facts. (See <i>Ludgate Ins. Co. v. Lockheed Martin Corp.</i> (2000) 82 Cal.App.4th 592, 606 ["A cardinal rule of pleading is that only the ultimate facts need be alleged."].) Nonetheless, the Complaint fails to allege that the defects in the product caused injury to the Plaintiff, as required to make out both a strict products liability and negligent products liability cause of action. Instead, the Complaint asserts that "Laelen Moore," and not Plaintiff Markeita Lemetrea Hatter, was injured while riding the Jaguar ride. (See <i>id.</i>, ¶¶ 5, 10, 11, 16, 24.) Therefore, the court will SUSTAIN the demurrer to the 2nd and 3rd Causes of Action. <u>Leave to Amend</u> "It is an abuse of the trial court's discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the plaintiff can amend the complaint to allege any cause of action." (<i>Smith v. State Farm Mutual Automobile Ins. Co.</i> (2001) 93 Cal.App.4th 700, 711.) However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (See <i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) At the same time, "for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (<i>Eghesad v. State Farm General Insurance Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) Here, Plaintiff has requested leave to amend and the demurrer is asserted against the original Complaint, so that Plaintiff has not had a prior opportunity to amend in response to a challenge by the Defendants. Thus, the court will exercise its discretion and grant leave to amend.
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		Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff shall file and serve the amended complaint within 15 days of service of the notice of ruling. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court's ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 ["It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all."].) Defendants shall give notice of this ruling.
4	Bartlett Care Center, LLC vs. Olson 30-2025-0150649	<u>Demurrer</u> Defendants Theresa Jane Olson's and Joseph Russell Kenyon's Demurrer to the Complaint is OVERRULED as to the 1st, 3rd, and 4th Causes of Action, and SUSTAINED with 15 days leave to amend as to the 2nd Cause of Action. If Plaintiff Bartlett Care Center, LLC dba French Park Care Center does not amend the Complaint for Damages within the period of time stated above, Defendants Theresa Jane Olson and Joseph Russell Kenyon shall file an answer or other pleading in response to the remaining causes of action of the Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court, rule 3.1320(j).) <u>Pending Motion</u> Defendant Theresa Jane Olson aka Theresa J. Olson aka Theresa Olson (Defendant Olson) and Defendant Joseph Russell Kenyon aka Joseph R. Kenyon aka Joseph Kenyon (Defendant Kenyon) demur to the 1st through 4th Causes of Action of the Complaint filed by Plaintiff Bartlett Care Center, LLC dba French Park Care Center. <u>Standard on Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in